THE NIJJAR MURDER ROW

A killing that turned into a major diplomatic dispute



Jun. 18, 2023: Khalistani separatist **Hardeep Singh Nijjar**, designated as a terrorist under the UAPA in 2020, is shot dead in Canada

Sept. 18: Canadian PM Trudeau says security agencies are probing credible allegations of a 'potential link' between Indian agents and the killing. India rejects the claim as 'absurd'

2023-24: The allegations trigger a diplomatic row. Both countries expel diplomats, suspend trade talks and visa services temporarily

Late 2024: The US indicts ex-RAW official Vikash Yadav and aide Nikhil Gupta over an alleged plot to kill Gurpatwant Singh Pannun in NYC, drawing a possible link to the Nijjar case

Jul. 2026: Operation Hard Ball accuses Lawrence Bishnoi, Goldy Brar and their aides of orchestrating Nijjar's killing, while the Pannun case continues

to build a courtroom-ready case.

The distinction also signals Washington's broader strategic interests. The US sees India as a key economic and security partner in balancing China in the Indo-Pacific. A legal narrative branding India as a terror sponsor would have carried profound consequences for the Quad, wider strategic ties and efforts to diversify global supply chains away from China. According to an official familiar with the matter, that distinction insulates the highest levels of the Indian government from direct legal implication and gives Washington, Ottawa and New Delhi greater diplomatic space to treat the challenge as a shared law enforcement effort against organised crime. "This could be the first step towards sidelining the earlier DoJ charges." After months of tension over the Nijjar allegations, India and Canada are gradually rebuilding ties. In May, the Canadian Security Intelligence Service identified Khalistani extremism as a national security threat, warning that a small but active network continues to use Canadian soil to fund and support violence. New Delhi has long argued that Sikh separatist extremists have used Canada as a base to organise, raise funds and support violence linked to the demand for 'Khalistan', a proposed independent Sikh state.



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VP, Studies and Foreign Policy, Observer Research Foundation

Another senior security official says that while sections within Ottawa initially favoured a public 'naming and shaming' campaign against New Delhi, Washington preferred a containment strategy. According to him, the US steered the narrative that the Bishnoi gang operated independently through smuggled mobile phones from Indian prisons, giving the RCMP the legal basis to conclude that 'nothing links the State'. "By transforming a highly volatile sovereign dispute into a massive, standardised cross-border criminal case, both countries achieved their core objectives without either capital having to issue an official apology," he adds.

EXTRADITION DILEMMA

Washington has also made clear that it intends to seek Bishnoi's extradition. Announcing the indictments, First Assistant US Attorney Bill Essayli argued that Bishnoi's incarceration had failed to stop the alleged criminal enterprise from operating internationally. "When they come to a federal penitentiary here in the United States, I guarantee you, he won't be extorting any more victims once he's in our custody," Essayli said, adding that the US expects Bishnoi to be extradited.

Any extradition request would proceed under the India-US Extradition Treaty, signed in 1997 and operational since 1999. However, there's a dilemma. If India accepts an extradition request, it could raise uncomfortable questions about how a gangster in prison allegedly continued to run a transnational criminal network. Bishnoi—now lodged in the high-security Sabarmati Central Jail in Ahmedabad—faces nearly 50 criminal cases. Legal experts note that extradition is difficult when an accused is already in custody and facing multiple domestic prosecutions. Advocate Rajani, who represents Bishnoi in multiple cases, says the defence has so far only learned of the US request through media reports. "Under Indian law, ongoing domestic criminal proceedings take precedence, making extradition unlikely until those cases are resolved," she tells INDIA TODAY.

For Dr Harsh Pant, vice president, studies and foreign policy, Observer Research Foundation, the larger significance of the indictment lies in how it reframes the dispute. He believes the US has created a diplomatic off-ramp by routing the blame through a network that both Washington and New Delhi regard as an adversary. "The DoJ has effectively lowered the geopolitical temperature on an issue that had the potential to become a major source of friction." ■